

Forensic_Indian_Criminal_Law_NEET_PG_INI_CET

Forensic Medicine — Indian Criminal Law:NEET PG/INI-CET High-Yield Master Table

Current framework

Current laws:Bharatiya Nyaya Sanhita,2023(BNS);Bharatiya Nagarik Suraksha Sanhita, 2023(BNSS);Bharatiya Sakshya Adhiniyam,2023(BSA).

Commencement:1 July 2024.

Important exceptionBNS §106(2)was specifi cally excluded from the 1 July 2024 commencement notifi cation and remains uncommenced as of September 2026.

Legacy law	Current law	Primary relevance
Indian Penal Code,1860(IPC)	BNS	Substantive criminal off ences
Code of Criminal Procedure,1973(CrPC)	BNSS	Criminal procedure
Indian Evidence Act,1872(IEA)	BSA	Evidence and witnesses

TABLE 1 — BNS:Criminal Responsibility, Sexual Offences, Women & Children

Legacy law	Current BNS	Subject / exam fact
IPC §82	§20	Child below 7 years
IPC §83	§21	Child above 7 and below 12 years with immature understanding
IPC §84	§22	Act of person of unsound mind
IPC §85	§23	Involuntary intoxication
IPC §86	§24	Intoxication and criminal intent/knowledge
IPC §87	§25	Consent to act not intended/known to cause death or grievous hurt
IPC §88	§26	Act done in good faith for a person's benefi t
IPC §89	§27	Act done in good faith for benefi t of child/person of unsound mind
IPC §90	§28	Consent under fear or misconception
IPC §375	§63	Rape — definition
IPC §376	§64	Punishment for rape
IPC §376(3), §376AB	§65	Punishment for rape in specifi ed cases involving girls below specifi ed age thresholds
IPC §376A	§66	Rape causing death or persistent vegetative state
IPC §376B	§67	Sexual intercourse by husband upon wife during separation
IPC §376C	§68	Sexual intercourse by person in authority
—	§69	Sexual intercourse by deceitful means, etc.
IPC §376D	§70(1)	Gang rape
IPC §376DA / §376DB	§70(2)	Gang rape of woman under 18 years

IPC §376E	§71	Repeat off enders
IPC §228A	§72	Disclosure of identity of victim of specified sexual offences
IPC §228A(3)	§73	Publishing matter relating to court proceedings without permission
IPC §354	§74	Assault/criminal force to woman with intent to outrage modesty
IPC §354A	§75	Sexual harassment
IPC §354B	§76	Assault/criminal force to woman with intent to disrobe
IPC §354C	§77	Voyeurism
IPC §354D	§78	Stalking
IPC §509	§79	Word/gesture/act intended to insult modesty of woman
IPC §304B	§80	Dowry death
IPC §498A	§85	Cruelty by husband/relative
IPC §498A Explanation	§86	Definition of cruelty
IPC §366	§87	Kidnapping/abducting/inducing woman to compel
IPC §313	§89	Causing miscarriage without woman's consent
IPC §314	§90	Death caused by act done with intent to cause miscarriage
IPC §315	§91	Preventing child being born alive / causing death after birth
IPC §316	§92	Death of quick unborn child by act amounting to culpable homicide
IPC §317	§93	Exposure/abandonment of child under 12
IPC §318	§94	Concealment of birth
—	§95	Hiring/employing/engaging a child to commit an offence
IPC §366A	§96	Procurator of child
IPC §369	§97	Kidnapping/abducting child under 10 years with intent to steal property
IPC §372	§98	Selling child for prostitution, illicit intercourse, etc.
IPC §373	§99	Buying child for prostitution, illicit intercourse, etc.

Criminal responsibility — BNS §22

The **McNaghten-type cognitive approach** remains central.

The relevant question is whether, because of unsoundness of mind, the person was **incapable of knowing**:

- the nature of the act; or
- that the act was wrong or contrary to law.

TABLE 2 — BNS: Kidnapping, Homicide, Negligence, Hurt & Grievous Hurt

A. Kidnapping / abduction

Legacy IPC	Current BNS	Subject
☒359	§137(1)	Kidnapping — definition
☒360	§137(1)(a)	Kidnapping from India
☒361	§137(1)(b)	Kidnapping from lawful guardianship
☒363	§137(2)	Punishment for kidnapping
☒362	§138	Abduction
☒363A	§139	Kidnapping/maiming child for begging
☒364	§140(1)	Kidnapping/abducting in order to murder
☒364A	§140(2)	Kidnapping for ransom, etc.
☒365	§140(3)	Kidnapping/abducting with intent secretly and wrongfully to confine
☒367	§140(4)	Kidnapping/abducting to subject person to grievous hurt, slavery, etc.
☒366B	§141	Importation of girl/boy from foreign country
☒368	§142	Wrongfully concealing/keeping kidnapped or abducted person
☒370	§143	Trafficking of person
☒370A	§144	Exploitation of trafficked person
☒374	§146	Unlawful compulsory labour

Exam correction: Do not memorise IPC §§359–369 as a current section range. BNS reorganises these offences primarily into §§137–142, with related trafficking provisions extending through §§143–146.

B. Homicide, death and negligence

Legacy IPC	Current BNS	Subject / high-yield fact
☒299	§100	Culpable homicide — definition
☒300	§101	Murder — definition
☒301	§102	Culpable homicide by causing death of person other than intended victim
☒302	§103(1)	Punishment for murder
—	§103(2)	Murder by group of five or more persons in specified circumstances
☒303	§104	Punishment for murder by life-convict
☒304	§105	Culpable homicide not amounting to murder
☒304A	§106(1)	Causing death by rash/negligent act
—	§106(2)	Fatal hit-and-run provision —enacted but not in force as of Sept 2026
☒305	§107	Abetment of suicide of child/person of unsound mind
☒306	§108	Abetment of suicide
☒307	§109	Attempt to murder
☒308	§110	Attempt to commit culpable homicide

Medical negligence — BNS §106(1)

Point	Current law
General negligent death	Imprisonment up to 5 years + fine
Registered medical practitioner	If act is done by an RMP while performing a medical procedure → imprisonment up to 2 years + fine
RMP	Practitioner with qualification recognised under the National Medical Commission Act, 2019, whose name is entered in the National or State Medical Register
☒106(2)	Fatal hit-and-run provision; not currently operative

C. Hurt and grievous hurt

Legacy IPC	Current BNS	Subject
☒319	§114	Hurt — definition
☒321	§115(1)	Voluntarily causing hurt — definition
☒323	§115(2)	Punishment for voluntarily causing hurt
☒320	§116	Grievous hurt — definition
☒322	§117(1)	Voluntarily causing grievous hurt — definition
☒325	§117(2)	Punishment for voluntarily causing grievous hurt
☒324	§118(1)	Voluntarily causing hurt by dangerous weapons/means
☒326	§118(2)	Voluntarily causing grievous hurt by dangerous weapons/means
☒328	§123	Causing hurt by poison/stupefying/intoxicating/unwholesome substance with specified intent
☒326A	§124(1)	Voluntarily causing grievous hurt by acid, etc.
☒326B	§124(2)	Throwing/attempting to throw acid
☒336	§125	Act endangering human life/personal safety
☒337	§125(a)	Hurt caused by act endangering life/personal safety
☒338	§125(b)	Grievous hurt caused by act endangering life/personal safety

D. Grievous hurt — BNS §116

There are **8 categories**

#	Grievous hurt
1	Emasculation
2	Permanent privation of sight of either eye
3	Permanent privation of hearing of either ear
4	<u>Privation</u> of any member or joint
5	<u>Destruction or permanent impairment of power</u> of any member or joint
6	Permanent disfigurement of head or face
7	Fracture or dislocation of a bone or tooth
8	Hurt endangering life, or causing severe bodily pain/inability to follow ordinary pursuits for 15 days

Major numerical trap

IPC §320 → 20 days
BNS §116 → 15 days

text

E. Acid attack — BNS §124

Provision	Current rule
§124(1)	Acid-related permanent/partial damage, deformity, burns, maiming, disfigurement, disability, grievous hurt or permanent vegetative state
Punishment	10 years to life imprisonment + fine
§124(2)	Throwing/attempting to throw or administer acid with specified intent
Punishment	5–7 years + fine

TABLE 3 — BNSS + BSA: Forensic Procedure, Rape Examination & Evidence

A. Inquest / death investigation

Legacy CrPC	Current BNSS	Subject
§174	§194	Police to enquire and report on suicide, etc.
§176	§196	Inquiry by Magistrate into cause of death
§164A	§184	Medical examination of victim of rape

BNSS §194 — Police inquest

Police receive information that a person:

- committed suicide;
- was killed by another person;
- was killed by an animal;
- was killed by machinery;
- died in an accident; or
- died in circumstances raising reasonable suspicion that another person committed an offence.

The police officer investigates the body and prepares a report describing:

- apparent cause of death;
- wounds;
- fractures;
- bruises;
- other marks of injury;
- apparent manner/instrument by which injuries were inflicted.

High-yield forensic sequence

Suspicious death/suicide/accident/possible offence



Police information



BNSS §194 inquest



Report of apparent cause + injuries



Magistrate inquiry where applicable
(BNSS §196)



Postmortem + ancillary investigations
when indicated

BNSS §196 — Magistrate inquiry

Particularly important in specified circumstances including:

suicide by a woman within **7 years of marriage**

death of a woman within **7 years of marriage** in specified suspicious circumstances;

doubt regarding cause of death;

death/disappearance or alleged rape occurring while the person/woman is in custody.

B. BNSS §184 — Medical examination of victim of rape

Point	Current statutory requirement
Old provision	CrPC §164A
Current provision	BNSS §184
Examiner	Specified registered medical practitioner
Consent	Examination requires consent of the woman or a person competent to give consent on her behalf
Timing	Woman should be sent to the RMP within 24 hours of receiving information regarding the offence
Identity/age	Must be recorded
DNA material	Description of material collected for DNA profiling
Injuries	Marks of injury must be recorded
Mental state	General mental condition must be recorded
Conclusions	Report must state precisely the reasons for each conclusion
Consent	Report must record required consent
Timing of examination	Exact commencement and completion time
Forwarding	RMP forwards report to investigating officer within 7 days

Clinical-legal principle

Medical examination ≠ "proof of rape"

text

Doctor:

- treats injuries
- documents history/findings
- collects appropriate forensic material
- documents consent
- records findings objectively
- gives medical opinions within professional competence

Investigation + appreciation of all evidence + judicial process
→ determine criminal liability

C. BSA — Evidence and witnesses

Legacy IEA	Current BSA	Subject / high-yield fact
☒32	§26	Statements by persons who cannot be called as witnesses; includes dying-declaration framework
☒45	§39	Opinions of experts
☒138	§143	Order of examination of witnesses
§§141–143	§146	Leading questions
☒154	§157	Party questioning own witness / hostile-witness framework
☒155	§158	Impeaching credit of witness
☒157	§160	Former statement for corroboration
☒165	§168	Judge's power to put questions/order production

BSA §26 — Dying declaration

BSA §26 covers statements by a person who:

- is dead;
- cannot be found;
- has become incapable of giving evidence;
- or whose attendance cannot be procured without unreasonable delay or expense.

The classic **dying-declaration rule** is contained in **BSA §26(a)**

Exam trap: BSA §26 is broader than merely "dying declaration"; it contains the wider statutory category of relevant statements by persons who cannot be called as witnesses.

BSA §39 — Expert opinion

BSA ☒39

text



Opinions of experts



Relevant when Court has to form an opinion on matters requiring special knowledge / skill

↓
Medical expert
Forensic expert
Scientific / technical expert

BSA §143 — Order of examination

1. Examination-in-chief
↓
2. Cross-examination
↓
3. Re-examination

text

BSA §146 — Leading questions

A leading question is a question suggesting the answer which the person asking it wishes or expects to receive.

Stage	Rule
Examination-in-chief	If objected to, generally not permitted except with court permission
Re-examination	If objected to, generally not permitted except with court permission
Introductory/undisputed matters	Court may permit leading questions
Cross-examination	Leading questions may be asked

REPEAL AND SAVINGS — MUST KNOW

Old Act repealed	Current Act	Repeal & savings
Indian Penal Code, 1860	BNS	§358
Code of Criminal Procedure, 1973	BNSS	§532
Indian Evidence Act, 1872	BSA	§170

The old Acts are repealed, but the respective savings provisions preserve specified pending proceedings, investigations, trials, appeals, rights, liabilities and actions under the earlier laws.

ULTRA-HIGH-YIELD LEGACY → CURRENT ANCHORS

Old section	Current section	Memorise as
IPC §82	BNS §20	Child <7
IPC §83	BNS §21	7–<12, immature understanding
IPC §84	BNS §22	Unsound mind
IPC §85	BNS §23	Involuntary intoxication
IPC §86	BNS §24	Intoxication + intent/knowledge
IPC §87	BNS §25	Consent to non-fatal/non-GH act
IPC §88	BNS §26	Good-faith act for benefit
IPC §89	BNS §27	Benefit of child/unsound person
IPC §375	BNS §63	Rape
IPC §376	BNS §64	Punishment for rape
IPC §376D	BNS §70	Gang rape
IPC §376E	BNS §71	Repeat offenders
IPC §228A	BNS §72	Victim identity
IPC §354	BNS §74	Outraging modesty
IPC §354A	BNS §75	Sexual harassment
IPC §354B	BNS §76	Disrobing
IPC §354C	BNS §77	Voyeurism
IPC §354D	BNS §78	Stalking
IPC §509	BNS §79	Insulting modesty
IPC §304B	BNS §80	Dowry death
IPC §498A	BNS §85	Cruelty
IPC §366	BNS §87	Kidnapping/abducting woman to compel marriage
IPC §312	BNS §88	Causing miscarriage
IPC §313	BNS §89	Miscarriage without consent
IPC §314	BNS §90	Death during attempted miscarriage
IPC §315	BNS §91	Preventing live birth / causing death after birth
IPC §316	BNS §92	Death of quick unborn child
IPC §317	BNS §93	Exposure/abandonment child <12
IPC §318	BNS §94	Concealment of birth
IPC §359	BNS §137(1)	Kidnapping
IPC §362	BNS §138	Abduction
IPC §363	BNS §137(2)	Punishment for kidnapping
IPC §364	BNS §140(1)	Kidnapping to murder
IPC §364A	BNS §140(2)	Kidnapping for ransom
IPC §365	BNS §140(3)	Kidnapping to secretly confine
IPC §367	BNS §140(4)	Kidnapping for grievous hurt/slavery etc.
IPC §368	BNS §142	Concealing kidnapped person
IPC §370	BNS §143	Trafficking
IPC §370A	BNS §144	Exploitation of trafficked person
IPC §299	BNS §100	Culpable homicide

IPC §300	BNS §101	Murder
IPC §301	BNS §102	Death of unintended victim
IPC §302	BNS §103(1)	Punishment for murder
IPC §304	BNS §105	Culpable homicide not amounting to murder
IPC §304A	BNS §106(1)	Death by negligence
IPC §305	BNS §107	Abetment suicide — child/unsound mind
IPC §306	BNS §108	Abetment suicide
IPC §307	BNS §109	Attempt to murder
IPC §308	BNS §110	Attempt culpable homicide
IPC §319	BNS §114	Hurt
IPC §321	BNS §115(1)	Voluntarily causing hurt — definition
IPC §323	BNS §115(2)	Punishment for voluntarily causing hurt
IPC §320	BNS §116	Grievous hurt
IPC §322	BNS §117(1)	Voluntarily causing grievous hurt — definition
IPC §325	BNS §117(2)	Punishment for voluntarily causing grievous hurt
IPC §324	BNS §118(1)	Hurt by dangerous weapons
IPC §326	BNS §118(2)	Grievous hurt by dangerous weapons
IPC §326A	BNS §124(1)	Acid attack with injury
IPC §326B	BNS §124(2)	Attempted acid attack
CrPC §164A	BNSS §184	Rape-victim medical examination
CrPC §174	BNSS §194	Police inquest
CrPC §176	BNSS §196	Magistrate inquiry
IEA §32	BSA §26	Dying-declaration framework
IEA §45	BSA §39	Expert opinion
IEA §138	BSA §143	Order of examination
IEA §§141–143	BSA §146	Leading questions
IEA §154	BSA §157	Party questioning own witness
IEA §155	BSA §158	Impeaching credit
IEA §157	BSA §160	Former statement for corroboration
IEA §165	BSA §168	Judge's power to question

MUST-NOT-MISS EXAM TRAPS

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IPC §320 → grievous hurt → 20 DAYS

BNS §116 → grievous hurt → 15 DAYS

IPC §375 → rape

BNS §63 → rape

IPC §376 → punishment for rape

BNS §64 → punishment for rape

IPC §376D → gang rape

BNS §70 → gang rape

IPC §304B → dowry death

BNS §80 → dowry death

IPC §498A → cruelty

BNS §85 → cruelty

BNS §86 → definition of cruelty

IPC §299 → culpable homicide

BNS §100 → culpable homicide

IPC §302 → punishment for murder

BNS §103 → punishment for murder

IPC §304A → death by negligence

BNS §106(1) → death by negligence

BNS §106(1), RMP → maximum 2 years + fine

BNS §106(2), fatal hit-and-run → ENACTED BUT NOT IN FORCE as of Sept 2026

IPC §319 → hurt

BNS §114 → hurt

IPC §320 → grievous hurt

BNS §116 → grievous hurt

IPC §326A/B → acid attack

BNS §124 → acid attack

CrPC §164A → BNSS §184 → rape-victim medical examination

CrPC §174 → BNSS §194 → police inquest

CrPC §176 → BNSS §196 → Magistrate inquiry

IEA §32 → BSA §26 → dying-declaration framework

IEA §45 → BSA §39 → expert opinion

IEA §138 → BSA §143 → order of examination

IEA §§141-143 → BSA §146 → leading questions

IEA §154 → BSA §157 → party questioning own witness

IEA §165 → BSA §168 → judge's power to question

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## Verification sources

Bharatiya Nyaya Sanhita, 2023 — India Code/NCRB official section correspondence and enacted text.

Bharatiya Nagarik Suraksha Sanhita, 2023 — India Code/NCRB official section correspondence and enacted text.

**Bharatiya Sakshya Adhiniyam, 2023** — India Code/NCRB official section  
correspondence and enacted text.

Commencement notifications for the new criminal laws, including the specific exclusion  
of BNS §106(2).

Repeal-and-savings provisions **BNS §358; BNSS §532; BSA §170.**